

ORIGINAL

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Daniel D. Domenico**

Civil Action No. 1:18-cv-02076-DDD-SKC

HOLLIS ANN WHITSON, as guardian *ad litem* for Peatinna Biggs,

Plaintiff,

v.

THOMAS HANNA, Former Sheriff, in his official and individual
capacities,

Defendant.

VERDICT FORM

We, the Jury, being duly empaneled and sworn to try the above-entitled case, unanimously find the following answers to the questions submitted by the Court.

CLAIM 1: EXCESSIVE FORCE

Question 1: Do you find, by a preponderance of the evidence, that Defendant used excessive force against Ms. Biggs as described in Instruction No. 12 and that Plaintiff proved the elements of this claim as described in Instruction No. 11?

 X YES NO

Please proceed to Question 2 on the following page.

CLAIM 2: CRUEL AND UNUSUAL PUNISHMENT

Question 2: Do you find, by a preponderance of the evidence, that Defendant subjected Ms. Biggs to cruel and unusual punishment as described in Instruction No. 13 and that Plaintiff proved the elements of this claim as described in Instruction No. 11?

 X YES NO

Please proceed to Question 3 on the following page.

CLAIM 3: FALSE IMPRISONMENT

Question 3: Do you find, by a preponderance of the evidence, that Defendant subjected Ms. Biggs to false imprisonment as described in Instruction No. 14 and that Plaintiff proved the elements of this claim as described in Instruction No. 11?

X YES _____ NO

If you answered “YES” to any of Questions 1-3 above, then proceed to answer Questions 4-5 under the heading “Damages” on the following pages.

If you answered “NO” to all of Questions 1-3 above, then skip Questions 4-5 and proceed to sign and date the verdict form on the last page.

DAMAGES

*Answer Questions 4-5 only if you answered "YES"
to any of Questions 1, 2, or 3 above.*

Question 4:

(a) Based on Instruction Nos. 17 and 18, do you find by a preponderance of the evidence that Ms. Biggs is entitled to compensatory damages as a result of Defendant's deprivation of her constitutional right(s)?

X YES NO

If you answered Question 4(a) "YES," then answer Question 4(b). If you answered Question 4(a) "NO," then skip Question 4(b) and proceed to Question 5 on the following page.

(b) State the amount of compensatory damages as described in Instruction No. 17 that you find will reasonably and fairly compensate Ms. Biggs for injuries proximately caused by Defendant's deprivation of her constitutional right(s):

\$ 3,250,000.⁰⁰

Please proceed to Question 5 on the following page.

Question 5:

(a) Based on Instruction No 20, do you find by a preponderance of the evidence that Defendant acted maliciously or wantonly to violate Ms. Biggs's constitutional right(s)?

X YES NO

If you answered Question 5(a) "YES," then answer Question 5(b). If you answered Question 5(a) "NO," then skip Question 5(b) and proceed to sign and date the verdict form on the following page.

(b) State the amount of punitive damages, if any, you find should be awarded to punish Defendant for his deprivation of Ms. Biggs's constitutional right(s).

\$ 5,000,000.⁰⁰

Please proceed to sign and date the verdict form on the following page.

SIGNATURE

Juror signature redacted.

Foreperson

Dated this 4 day of October, 2022.